

20STCV17339 20STCV17339

County: los-angeles

Division: Civil Law and Motion

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Case Number: 20STCV17339 Hearing Date: June 30, 2026 Dept: C

JEHAN ZEB MIR vs

SURATI CASH & CARRY, et al.

CASE NO.: 20STCV17339

HEARING: 6/30/26 @ 9:30 AM

#14

TENTATIVE ORDER

Plaintiff

Jehan Zeb Mir, M.D.'s Motion for Reconsideration of the Court's March 19, 2026

Order is OFF-CALENDAR.

Clerk to give notice.

Plaintiff Jehan Zeb Mir, M.D. (Mir) moves for reconsideration of the Court's March 19, 2026 order denying Mir's motion to vacate Judge Lu's void order dated January 18, 2023.

Reconsideration

Mir cannot prevail because Judge Lu's January 18, 2023 Order is not void on its face. Underlying his motion to renew and motion for reconsideration of the Court's March 19, 2026 Order is his repeatedly rejected arguments that he was not subject to a prefilling order and that Judge Lu had no jurisdiction because she accepted his peremptory challenge. As the filings in

this action show, Mir repeatedly mischaracterizes the law, facts, and procedural history. Mir cannot prevail because he cannot establish that he was not subject to the Court of Appeals expanded prefiling order or that Judge Lu lost jurisdiction to deny his motion for reconsideration of the September 13, 2022 Order. The Court finds that Mir offers no valid legal or factual basis to reconsider any of Judge Lu's orders or for the Court to set a trial date.

Vexatious Litigant

A court has inherent power, on a sufficient factual showing, to dismiss an action filed by a vexatious litigant that is shown to be sham, fictitious, or without merit, and to impose sanctions in order to prevent an abuse of the judicial process. (Code of Civil Procedure section 391.7; Flores v. Georgeson (2011) 191 Cal.App.4th 881, 886.)

Plaintiff Mir was declared a vexatious litigant by the Los Angeles Superior Court (Case No. TC015566) on November 13, 2002. On February 24, 2003, the California Court of Appeal, 2nd District, Division 2 (Appeal No. B14889) entered an expanded pre-filing order prohibiting Mir from filing litigation in propria persona or through an attorney. (RJN, Ex. 1: 1/18/23 Order, fn. 1.) In entering the expanded prefiling order, the Court of Appeal observed that Mir "employs attorneys only as a matter of tactics, principally, it appears, to avoid the application of section 391 et seq." Additionally, as Judge Lu indicated in her 1/18/23 Order, Mir selectively ignores the Court of Appeal, Second District, Division 1's subsequent July 23, 2020, order in Mir v. Mercury Insurance Group (2020 WL 4218171) which confirmed that Mir is subject to an expanded prefiling order. (RJN Ex. 1: 1/18/23 Order, p. 13:18-22.)

Here, Mir became unrepresented during the course of litigation. This pattern reinforces the Court of Appeal's observation years ago that Mir retains attorneys "as a matter of tactics ... to avoid the application" of his prefiing order. Mir has been subject to, and has been aware of, the expanded prefiling order for approximately twenty years, yet did not attempt to obtain permission to file this litigation. This further indicates that Mir is not only attempting to avoid the application of his expanded prefiling order, but he brings this litigation for the purpose of harassment.

Accordingly, Mir's motion for reconsideration

of the Court's March 19, 2026 Order is OFF-CALENDAR. This action was DISMISSED on September 13, 2022.